

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JEAN MICHEL,

Plaintiff,

-against-

**FIRST AMENDED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER JOHN
WALSH (shield # 04008), POLICE OFFICER RICHARD
KERN (shield # 9459), POLICE OFFICER LOWEZ
WALKER (shield # 23357), POLICE OFFICER
MEHMET KANBUR (shield # 04045),

CV 08 745 (DGT) (MDG)

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action, brought pursuant to 42 U.S.C. § 1983, alleging misconduct by the City of New York and four of its police officers. Plaintiff alleges that, on January 15, 2007, Officers John Walsh, Richard Kern, Lowez Walker, and Mehmet Kanbur subjected him to false arrest, excessive force, assault, battery, and fabricated evidence in violation of the Fourth, Sixth and Fourteenth Amendments to the Constitution and New York common law. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his state law claims of false arrest, assault, battery, and

negligent hiring, training, supervision, and retention. With respect to these state law claims, a notice of claim was duly filed on the City of New York within 90 days of the acts at issue, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's state law claims.

4. Venue is proper in the Eastern District pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in this District. Moreover, venue is proper here pursuant to 28 U.S.C. § 1391(b) because the incidents at issue in this lawsuit took place in Brooklyn, which is within the confines of the Eastern District.

PARTIES

5. Plaintiff is a resident of the State of New York.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Police Officer John Walsh is a member of the New York City Police Department ("NYPD") who was involved in the arrest of plaintiff, and the torts arising out of plaintiff's arrest, on January 15, 2007. Walsh is liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of his fellow officers. Walsh is sued in his individual capacity.

8. Police Officer Richard Kern is a member of the NYPD who was involved in the arrest of plaintiff, and the torts arising out of plaintiff's arrest, on January 15, 2007. Kern is liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of his fellow officers. Kern is sued in his individual capacity.

9. Police Officer Lowez Walker is a member of the NYPD who was involved in the arrest of plaintiff, and the torts arising out of plaintiff's arrest, on January 15, 2007. Walker is liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of his fellow officers. Walker is sued in his individual capacity.

10. Police Officer Mehmet Kanbur is a member of the NYPD who was involved in the arrest of plaintiff, and the torts arising out of plaintiff's arrest, on January 15, 2007. Kanbur is liable for directly participating in the acts described herein and for failing to intervene to protect plaintiff from the illegal conduct of his fellow officers. Kanbur is sued in his individual capacity.

STATEMENT OF FACTS

11. On January 15, 2007, between 11:00 a.m. and 12:00 p.m., plaintiff and a few of his friends, including Jonathan Cadet, were washing their coats in the laundry and recreation room of 115 Ocean Avenue, Brooklyn, New York. On January 15, 2007, Jonathan Cadet resided at 115 Ocean Avenue in apartment F-10.

12. At the above time and place, plaintiff and his friends were seized without cause by Officers John Walsh, Richard Kern, Lowez Walker, and Mehmet Kanbur (collectively referred to as the "officers").

13. In the course of effectuating the seizure, the officers pointed their guns at plaintiff and the others.

14. Jonathan Cadet explained to the officers that he was a resident of the building and that his friends were his guests.

15. Cadet offered to prove to the officers that he was a resident of the building.

16. The officers were not interested in the truth.

17. The officers conspired to falsely arrest plaintiff and his friends for trespassing in a building operated by the New York City Housing Authority.

18. During the course of arresting plaintiff, one of the officers, who is black, forcefully pushed the unresisting plaintiff to the ground causing plaintiff to suffer injury and pain.

19. Plaintiff was subsequently taken to the 71st Precinct for arrest processing.

20. In the evening, the police took plaintiff to Central Booking for further arrest processing and to await arraignment.

21. While plaintiff was confined in Central Booking, the officers conveyed false information to prosecutors in order to have plaintiff prosecuted.

22. On January 16, 2007, plaintiff was arraigned in Criminal Court, Kings County, on a misdemeanor charge of trespass.

23. The presiding criminal court judge released plaintiff on his own recognizance.

24. After plaintiff made several court appearances after his arraignment, the criminal charge filed against plaintiff was adjourned in contemplation of dismissal.

25. As a result of defendants' actions, plaintiff suffered pain and injury, emotional distress, mental anguish, fear, embarrassment, humiliation, discomfort, damage to reputation, and loss of liberty from January 15, 2007 to January 16, 2007.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
DEFENDANTS JOHN WALSH, RICHARD
KERN, LOWEZ WALKER, AND MEHMET
KANBUR WALSH**

26. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-25 as if fully set forth herein.

27. The conduct of defendants John Walsh, Richard Kern, Lowez Walker, and Mehmet Kanbur, as described herein, amounted to false arrest, excessive force and fabrication of evidence in violation of 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

28. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-27 as if fully set forth herein.

29. The City of New York directly caused the constitutional violations suffered by plaintiff.

30. Upon information and belief, the City of New York, at all relevant times herein, was aware from notices of claim, lawsuits, complaints filed with the City, and from the City's own observations, that many of its police officers, including the individual defendants, are unfit officers who have the propensity to commit the acts alleged herein. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

31. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST JOHN WALSH, RICHARD KERN,
LOWEZ WALKER, AND MEHMET KANBUR
WALSH**

32. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-31 as if fully set forth herein.

33. The conduct of defendants John Walsh, Richard Kern, Lowez Walker, and Mehmet Kanbur, as described herein, amounted to false arrest, assault and battery in violation of New York state law.

**PLAINTIFF'S STATE LAW CLAIMS
AGAINST THE CITY OF NEW YORK**

34. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-33 as if fully set forth herein.

35. Because Officers John Walsh, Richard Kern, Lowez Walker, and Mehmet Kanbur were acting within the scope of their employment as members of the NYPD during the incidents in question, the City of New York is vicariously liable under state law for false arrest, assault and battery,

36. Further, for the reasons stated in ¶ 30, the City of New York is liable under state law because it negligently hired, trained, supervised, and retained the individual defendants.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;

- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: April 7, 2008
Brooklyn, New York

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By:

RICHARD J. CARDINALE (RC-8507)